

MINUTES OF PROCEEDINGS AT MONTHLY MEETING OF THE MUNICIPAL DISTRICT OF ADARE-RATHKEALE HELD IN ÁRAS SEÁN FINN, NEW LINE ROAD, RATHKEALE, CO. LIMERICK AND ONLINE ON TUESDAY, 11TH MARCH, 2025 AT 9.30 A.M.

PRESENT IN THE CHAIR:

Councillor A. Teskey, An Cathaoirleach.

MEMBERS PRESENT:

Councillors Collins, Hartigan, Keary, O'Donoghue and Ward.

OFFICIALS IN ATTENDANCE:

Director of Service, Planning and Place-Making (Mr. V. Murray), Meetings Administrator (Ms. K. Butler), Senior Executive Engineer, Roads, Traffic and Cleansing (Mr. G. O'Connor), Executive Engineer, Roads, Traffic and Cleansing (Mr. J. O'Keeffe), A/Director of Service, Transportation and Mobility (Mr. H. McGrath), Town Regeneration Officer, Rural Development (Ms. K. Burke), Town Development Officer, Rural Development (Mr. S. O'Doherty), Executive Architect, Rural Development (Mr. R. O'Connor), Clerical Officer (Ms. L. Lenihan).

At the outset of the Meeting Members welcomed Mr. Vincent Murray in his new role as Director of Service for the Adare-Rathkeale Municipal District and wished outgoing Director of Service, Mr. Stephane Duclot well in his appointment as Director of the Newcastle West Municipal District.

1. Adoption of Minutes

- (a) Circulated, copy of draft Minutes of the Monthly Meeting of the Municipal District of Adare-Rathkeale held on 11th February, 2025.

Proposed by Councillor Keary;
Seconded by Councillor O'Donoghue;
And Resolved:

"That the draft Minutes, as circulated, be taken as read, adopted and signed".

- (b) Circulated, copy of draft Minutes of the Special Meeting of the Municipal District of Adare-Rathkeale held on 20th February, 2025.

Proposed by Councillor Keary;
Seconded by Councillor O'Donoghue;
And Resolved:

"That the draft Minutes, as circulated, be taken as read, adopted and signed".

Following the adoption of the minutes Councillor O'Donoghue stated he had requested consideration be given to the installation of speed cameras between Anhid Cross on the M20 and Lees Cross on the Bruff Line, similar to the average speed cameras in operation on the M7. It was agreed this request would be forwarded to An Garda Síochána for consideration.

Councillor Teskey extended his best wishes to the town of Kilmallock who are hosting this year's National Famine Commemoration. He requested the Director, Planning and Place-Making follow up on an application submitted by the Knockfierna Heritage Society in the Adare-Rathkeale Municipal District to host the event, which to date has not been acknowledged by Limerick City and County Council.

2. Declaration of Interest

The Meetings Administrator stated that, in line with Part 15 of the Local Government Act, 2001, as amended, and the Code of Conduct, she was inviting those present to notify the Cathaoirleach of any declaration of interest in any item due for discussion at the Meeting.

No such interest was declared.

3. Rural, Culture, Community and Tourism Development Directorate

Part 8 Procedure – Redevelopment of the Monument Hill Walk in Foynes, Co. Limerick

Circulated, report of the Director of Service, Rural, Culture, Community and Tourism Development Directorate dated 3rd March, 2025 and enclosed Mayor's Report dated 3rd February, 2025 setting out details in relation to the proposed development of re-grading of existing concrete stairs leading from Marine Cove, new viewing area at the top of the stairs, timber fence with mesh infill along northern site boundary, reconfigured walking trail from viewing platform to the Stephen Edmond Spring Rice Memorial Cross Monument and informal play areas. Works also include cleaning and minor repair works to the Monument, and a vehicular maintenance path from existing forest access road to a vehicle manoeuvring area to the west of the Monument at Marine Cove, Leahy's, Foynes, Limerick. The report had been prepared in accordance with Section 179 (3)(a) of the Planning and Development Act 2000 (as amended) and Part 8 of the Planning and Development Regulations 2001 (as amended) and noted that it was proposed to proceed in accordance with Section 8 of the report.

Discussion ensued, Councillor Keary welcomed the works, however, stated a proper maintenance programme for the location would have to be put in place once works are complete. The Town Regeneration Officer, Rural Development advised the Parks Department have agreed to maintain the amenity once works are complete. Councillor Teskey queried who would be responsible for maintaining the timber boundary fence in the future. The Town Regeneration Officer, Rural Development agreed to discuss maintenance issues with the Parks Department and revert to Members. Councillor Keary

requested consideration be given to change the specification of the fencing to mesh fencing with galvanised posts.

Councillor Teskey requested a parks maintenance budget be put in place to ensure grass cutting around public amenities in the District, in particular the Abbey site amenity in Rathkeale and public areas, be included on the grass cutting schedule to ensure these areas are more accessible to local population.

Proposed by Councillor Collins;
Seconded by Councillor O'Donoghue;
And Resolved:

"That the Part 8 in relation to the redevelopment of Monument Hill Walk in Foynes, Co. Limerick be approved in accordance with Section 179 (3)(a) of the Planning and Development Act 2000 (as amended) and Part 8 of the Planning and Development Regulations 2001 (as amended)".

4. Transportation and Mobility Directorate

Footpath from Kildimo to the Beer Garden Public House

The Cathaoirleach welcomed A/Director of Service, Transportation and Mobility to the Meeting. The A/Director of Service, Transportation and Mobility advised Members of the previous update on the location whereby a Road Safety Audit was completed and the required lands purchased. A Section 50 was submitted to the Office of Public Works in July 2024 and a Preliminary Design Report was submitted to the Traffic Infrastructure Ireland in October 2024. He further advised it is hoped funding would be allocated in 2025 to complete the scheme.

Discussion ensued, Councillor Teskey stated he was perplexed at the length of time this scheme was taking to complete. The A/Director of Service, Transportation and Mobility advised road safety standards on National Roads have higher levels of requirements to adhere to and as this scheme is a significant piece of infrastructure a Road Safety Audit was required to be carried out. Councillor Collins queried whether funding has been secured for the completion of this project. The A/Director of Service, Transportation and Mobility advised 2025 funding has not been announced from Traffic Infrastructure Ireland yet, however, it is hoped there will be an announcement by the end of March 2025. Councillor Hartigan asked if street lighting would be included as part of the overall scheme. The A/Director of Service, Transportation and Mobility advised the detailed design has not been finalised and the installation of street lighting will be looked at before then. Councillor O'Donoghue requested the survey costs associated with the footpath extension from Kildimo to the Beer Garden be provided by the next meeting.

5. Schedule of Municipal District Works for the Adare-Rathkeale District

Circulated, report of the Director of Services, Planning and Place-Making outlining the Draft Schedule of Municipal District Works (SMDW) 2025 for the Municipal District of Adare-Rathkeale.

Proposed by Councillor Teskey;
Seconded by Councillor Collins;
And Resolved:

“That, the Draft Schedule of Municipal District Works for the Municipal District of Adare-Rathkeale be adopted in accordance with Section 103A of the Local Government Act 2001”.

6. Roads, Traffic and Cleansing

District Engineers Report

Circulated, report of the Senior Executive Engineer, Roads, Traffic and Cleansing dated 11th March, 2025 outlining details of proposed works, projects and future projects planned for the District.

- Councillor Teskey requested a deterrent be installed on the wall of the Parklet in Askeaton to prevent vandalism of the surrounding buildings. The Senior Executive Engineer, Roads, Traffic and Cleansing agreed to liaise with Tom Joyce, Executive Architect, Urban and Rural Community Development.

7. General Municipal Allocation (GMA)

On the proposal of Councillor Collins, seconded by Councillor Teskey, it was agreed to allocate the following:

- €10,000 to Manor Fields, Adare.
- €12,000 to Adare GAA Club.
- €1,000 to Shanid Women’s Shed.
- €1,500 to Foynes Community Council.

On the proposal of Councillor Keary, seconded by Councillor Collins, it was agreed to allocate €2,000 to Manor Fields, Adare.

On the proposal of Councillor O’Donoghue, seconded by Councillor Collins, it was agreed to allocate €3,000 to Manor Fields, Adare.

On the proposal of Councillor Teskey, seconded by Councillor Collins, it was agreed to allocate the following:

- €2,000 to Coolcappa Community Centre.
- €28,000 to Adare-Rathkeale Road Maintenance.

On the proposal of Councillor Ward, seconded by Councillor Collins, it was agreed to allocate the following:

- €3,000 to Coláiste Mhuire, Askeaton.
- €2,000 to Gerald Griffin Resource Centre.

QUESTIONS

8. Question submitted by Councillor A. Teskey

I will ask at the next Meeting how many people have been prosecuted or legal action enforced upon land owners who do not cut or maintain their hedgerows by this Local Authority in the past 24 months and breakdown of each per District.

REPLY: Within the past 24 months, across all Municipal Districts in Limerick City & County Council, one landowner, in the Metropolitan MD, has been prosecuted for not maintaining their hedgerows by this Council.

For the period 2023 & 2024 the Adare Rathkeale MD offices have issued 605 letters to landowners advising them of their responsibilities under section 70 of the roads act 1993.

9. Question submitted by Councillor A. Teskey

I will ask at the next Meeting for an update on the discussions by this Council in relation to the appointment of an operator for the Askeaton Swimming Pool.

REPLY: Discussions are continuing with the same operator as reported at the February meeting of the Adare Rathkeale Municipal District.

It is envisaged that such discussions will continue until the end of the month. Subject to a satisfactory agreement, the centre could reopen later in the summer.

10. Question submitted by Councillor A. Teskey

I will ask at the next Meeting for the Local Authority to explain the brief and the role and its proposed purpose of the appointment of Kathleen White to our District Council and for the Local Authority to explain the exact areas for which the appointment will be responsible for and what exactly are the functions of the said appointment.

REPLY: The Director General has made a number of changes to enable the organisation deliver on the strategic priorities as emerging in the discussion and engagement around the Corporate Plan 2025 – 2029.

This includes further supporting the elected members and strengthening the delivery of services at Municipal and Metropolitan District level through the appointments of Senior Executive Officers to the Metropolitan and Municipal Districts.

The Senior Executive Officer post is to assist the Area Directors and District Chairs in their functions in addition to collaborating with colleagues across the organisation to support the delivery of services at District levels.

This is an additional resources and it is not a replacement or duplication of existing resources serving the municipal and metropolitan districts.

Overall oversight of the District has been assigned to Gordon Daly, Deputy Director General.

11. Question submitted by Councillor S. Keary

I will ask at the next Meeting:

- (a) How many applications have been made in the Adare-Rathkeale Municipal Area for Croí Cónaithe grant funding from the 1st of January 2024 to the 31st of December 2024.**
- (b) How many applications have been approved pertaining to the same period.**
- (c) How many applications have been refused/declined.**
- (d) How many Section 5 requests have been sought during the said period.**
- (e) How many applications did not have a Section 5 request.**

REPLY: The Vacant Property Refurbishment Grant was launched by the Government on 14th July 2022 and benefits property owners who wish to turn a formerly vacant house or building into their principal private residence or to make it available to the private rental market.

The Vacant property Refurbishment Grant is managed and administered by local authorities on behalf of the Department of Housing, Local Government and Heritage. Limerick City and County Council receives, processes, and decides on applications for the grant for the local administrative area.

A grant of up to a maximum of €50,000 (or €70,000 in the case of derelict structurally unsound and dangerous property) is available for the refurbishment of vacant properties for occupation as a principal private residence, and for properties which will be made available for rent,

including the conversion of properties which have not been used as residential heretofore (apart from agricultural, storage, base uses), subject to appropriate planning permission being in place.

The scheme application form states the following: “In cases where a question arises in relation to whether a proposed development needs planning permission or is exempted development, an applicant under the scheme will be required to submit a declaration of exemption under Section 5, of the Planning and Development Act 2000. This question may arise, in particular, in the case of a change of use, properties that have been vacant for a long period of time, and properties that are in substantial state of disrepair and / or require substantial works.”

Limerick City & County Council received 31 grant applications for the Adare-Rathkeale Municipal District in 2024. Of those applications, six applied with full planning permission for development already in place. A further two applications were located in an Architectural Conservation Area (ACA) and were directed to consult with the Council’s Conservation Office. Of the remaining 23 applications, 12 were requested to consult with the Council’s Planning Office to confirm that their proposed works were in compliance with the Planning Acts.

How many applications have been made in the Adare-Rathkeale Municipal Area for Croí Cónaithe grant funding from the 1st of January 2024 to the 31st of December 2024.	31
How many applications have been approved pertaining to the same period.	17
How many applications have been refused/declined.	3
How many Section 5 requests have been sought during the said period.	12
How many applications did not have a Section 5 request.	11

NOTICES OF MOTION

12. Notice of Motion submitted by Councillor A. Teskey

I will move at the next Meeting that this District write to the Minister for Enterprise Trade and Employment to ask for an update on what the Government have done to date and what measures if any have they undertaken to address the impending closure of Wyeth Nutritional.

The Motion was proposed by Councillor Teskey, seconded by Councillor O’Donoghue and agreed.

In proposing the Motion Councillor Teskey requested a full breakdown of what the Government have done to date to address the impending closure of Wyeth Nutritional which is a significant employer in the Askeaton region and raised concern of the long term impact on the local economy.

13. Notice of Motion submitted by Councillor A. Teskey

I will move at the next Meeting that this District Council write to the Finance Director to request that due to the approval of 99 units by An Bord Pleanála in Deerpark, Adare and given the fact that the balance of €9.15 million is now due to this Local Authority that this funding be allocated to the Adare-Rathkeale Municipal District.

The Motion was proposed by Councillor Teskey, seconded by Councillor Hartigan and agreed.

REPLY: The net proceeds of funding from land sales is ring-fenced in the capital account for the acquisition of strategic asset purchases for the Council in general. The future use of this fund is not pre-determined for any municipal/metropolitan district.

14. Notice of Motion submitted by Councillor J. O'Donoghue

I will move at the next Meeting for an update on the status of our road velocity patcher, especially around the number of days it was being repaired in 2024 and the costs involved.

The Motion was proposed by Councillor O'Donoghue, seconded by Councillor Teskey and agreed.

In proposing the Motion Councillor O'Donoghue asked if the cost of running the velocity patcher was taken from the roads maintenance budget. The Executive Engineer, Roads, Traffic and Cleansing advised the hire cost for the machine operator and the chips used is deducted from the roads maintenance budget. The Senior Executive Engineer, Roads, Traffic and Cleansing added the Machinery Yard is responsible for the repairs to the unit and if the unit is to be unavailable for an extended period of time the Machine Yard would also be responsible for replacing the unit for the duration of the repairs. Councillor O'Donoghue queried if there was a machine with more up to date technology available to improve on the current velocity patcher. The Executive Engineer, Roads, Traffic and Cleansing advised there is a hot macadam repair unit available, however, this type of unit is not suitable for rural road repairs.

REPLY: The Adare Rathkeale Velocity Patcher operated for 210 days during 2024. This compares favourably with the other rural districts of Kilmallock – Cappamore 202 days and Newcastle West 222 days.

There were periods throughout the year when there were interruptions to the operation of the velocity patcher and the details are below. Note these issues are common to the other rural districts;

- The patching unit was unavailable for 14 days when planned maintenance, periodic safety inspections & CVRT testing were booked. It was returned to the manufacturer for refurbishment on 14/11/24 until 14/12/24 , & for this period a replacement machine was hired in. Cost of these repairs Incl. VAT was €4,399.27.
- The velocity patching machine was serviced in house during 2024 to facilitate the replacement of consumable items such as rubber & steel delivery pipes, wear plates and couplings. It was unavailable for 11 days in total due to wait time on parts delivery from the vehicle manufacturer.
- A replacement driver operated the velocity patcher during planned annual leave periods.
- The velocity patching unit was stood down in 2024 during driver sick days and during periods of extreme weather.
- The Adare Rathkeale patcher was purchased new in 2016 and due for replacement in 2027, at which point it will become the spare machine for the fleet.

15. Correspondence

Correspondence was noted and taken as read.

16. A.O.B

- Councillor Teskey requested a Meeting with the Ryder Cup Co-Ordinator as he felt other towns and villages near Adare could benefit financially from the event.
- The Meetings Administrator informed Members that a request to receive a Deputation had been received from representatives of Coolcappa Action Group. Members agreed to receive this Deputation at the April Adare-Rathkeale Municipal District Meeting.
- Councillor Collins requested the Mid West National Road Design Office attend the April Municipal District Meeting to discuss the Adare Bypass, in particular the commencement location on the Limerick side of the project.

This concluded the Meeting.

Signed: _____
Cathaoirleach

Dated: _____